



Notification Waiver Determination

Ochre Health - Airlie Women's Clinic, VIC

Acquisition	Ochre Health Pty Limited applied for a notification waiver in respect of: - its proposed acquisition of all of the shares in Airlie Women's Clinic Pty Ltd (AWC), and - Ochre Group Commercial Property Pty Ltd as trustee for Ochre Group Commercial Property Unit Trust's proposed acquisition of the land on which 2 of AWC's 3 general practice medical clinics are operated, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 June 2026

Parties to the Acquisition	The acquirers, Ochre Health Pty Limited and Ochre Group Commercial Property Pty Ltd as trustee for Ochre Group Commercial Property Unit Trust (together with their connected entities, Ochre Health), support independent doctors to provide general practice medical services in regional, rural and urban communities around Australia. Ochre Health currently operates 69 medical centres and urgent care clinics located in the ACT, NSW, Queensland, Tasmania and Victoria, but currently does not operate any medical centres or urgent care clinics in Melbourne, Victoria. Ochre Health Group's medical recruitment business, Ochre Recruitment, also works with hospitals and medical practices across Australia and NZ to source and place locum and permanent doctors across a range of specialities. Ochre Health is majority owned and controlled by Genesis Capital, an Australian-based private equity firm that invests in businesses operating in the healthcare sector. AWC is a family medical practice with an all-female team of doctors providing comprehensive general practice medical care to men, women and children from its 3 clinics in the southeastern Melbourne suburbs of Prahran and Malvern, Victoria. Ochre Health and AWC supply general practice medical services in Victoria, however Ochre Health does not operate any medical centres or urgent care clinics within 80km of the AWC clinics.
-----------------------------------	---

Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no overlap in the supply of general practice medical services in the local Prahran and Malvern areas or in the greater Melbourne area b. there are other clinics supplying general practice medical services near Prahran and Malvern, Victoria and in the greater Melbourne area. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
---	---

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act